

Statement of Work (SOW)
Repair FCA Deficiencies in B34
564-24-901
Veterans Health Care System of the Ozarks (VHSO)
Fayetteville, Arkansas

The Contractor must furnish all management, supervision, labor, material, equipment, tools, supplies, consumables, parts, and related services, in accordance with the SOW, drawings, and specifications to fully complete the repair of Facility Condition Assessment (FCA) deficiencies within Building 34. This is a phased project and must be completed in accordance with the contract documents. Electronic Portable Document Format (.pdf) copies of drawings and specifications to this work will be furnished by VA upon Contractor's written request to the Contracting Officer (CO). Hard copies of SOW, drawings, and specifications are the Contractor's responsibility and expense at no additional cost to the Government. Contractor is responsible to verify existing and new dimensions, locations, and quantities to complete this project located on the Veterans Healthcare System of the Ozarks (VHSO) Main Campus 1100 N. College Avenue, Fayetteville, AR 72703.

****The Certification and Accreditation (C&A) does not apply, a Security Accreditation Package is not required****

I. GENERAL:

- A. Any provision or partial provision of the Contract, including but not limited to, drawings and specifications that is not consistent with this SOW will be null and void only to the extent of the inconsistency. All other provisions or partial provisions of the Contract, including but not limited to, drawings and specifications, must remain in full force and effect.
- B. Safety must be the Contractor's highest priority.
- C. The Contractors performing site activities on VHSO campus must have the following requirements completed prior to beginning work;
 - 1. Negative TB Test, within the past calendar year.
 - 2. Annual influenza shot is required for all staff performing work on VHSO VA campus.

3. While on campus, Contractor must wear a visible VHSO issued identity Badge.
 4. Minimum OSHA 10 certification.
- D. Period of Performance: One hundred eighty (180) calendar days.
 - E. This project must be a turn-key operation in accordance with this SOW, drawings, and specifications to be complete and working system(s).
 - F. VHSO facility must continue to operate during the contract Period of Performance, including but not limited to, the mechanical and electrical systems.
 - G. Contractor's work must be conducted with the least amount of disruption to the VHSO facility.
 - H. Contractor must submit to the CO and CO Representative (COR) a Schedule of Values (SOV), Field Office Expenses, and a Project Schedule (including Phasing Control Plan, if applicable) in accordance with this SOW, drawings, and specifications no later than ten (10) calendar days after Notice to Proceed (NTP) for COR written approval. The Project Schedule must contain provisions, including but not limited to, staging equipment and materials ahead of closing the affected patient care areas and working extended hours to meet the project requirement.
 - I. Contractor must submit to the CO and CO Representative (COR) all submittals no later than forty-five (45) calendar days after NTP for COR written approval.
 - J. Prior to the start of job site activities, together the Contractor and COR must conduct a site survey to identify and review specific work and differing site conditions.
 - K. VHSO utilities and work areas may not be immediately available to the Contractor and the Contractor must be flexible in the project schedule without additional cost to the Government.
 - L. Contractor materials, equipment, tools, supplies, consumables, and parts must not be left unattended within a common work area. When working in common areas, there must be a minimum of two (2) contractor employees

present to ensure that Contractor building materials, including but not limited to, equipment, tools, and supplies are not accessible to others.

M. **Warranty:** Contractor must guarantee workmanship for a period of one (1) year after COR written acceptance of work. Contractor must furnish a minimum one (1) year parts and labor warranty on equipment, components, and materials furnished plus any manufacturer's warranty greater than one (1) year.

N. **Emergency Service:** Contractor emergency service must be available 24 hours per day. Contractor must respond on-site to emergency service calls within two (2) hours of notification. Contractor must have the issue(s) corrected or a plan in place (awaiting parts) within four (4) hours of arrival at job site. Any temporary repairs must have prior written approval by the Chief, Engineering Service or their designated representative.

II. CONTRACTOR ACCESS AND ACTIVITIES:

A. **Safety:** Contractor's highest priority must be safety. Contractor work must be in accordance with Federal, State, Local OSHA codes, regulations, latest edition of NEC, latest edition of NFPA 70E, and 01 35 26 Safety Requirements specification. Contractor must furnish required safety items, including but not limited to, safety signage, cones, barricades, and must furnish and wear required Personal Protective Equipment (PPE). Contractor must be prohibited to work without proper safety items and PPE and will be asked to leave job site in absence or use of same.

B. **Infection Control:** Contractor must be responsible to develop a phasing and Infection Control Risk Assessment (ICRA) that incorporates requirements of specifications 01 00 00 General Requirements to meet requirements of VHSO and VHSO ICRA.

C. **Site Supervision:** Contractor must submit written qualifications of proposed site superintendent(s) to the CO and COR for consideration. Contractor must furnish superintendent(s) with written COR approval to continuously supervise on site contract activities. Contractor superintendent(s) must not engage in any direct trades' labor.

D. **Security:** Contractor must coordinate with VA Police and COR to comply with the VHSO security management program, including but not limited to, obtain onsite access permission by the VA Police, be identified by Contractor and project, and restricted from unauthorized access.

E. **Badging:** While on campus, Contractor must wear a visible VHSO issued identity Badge. Contractor can be subject to inspection of personal effects when entering or leaving the project site and VHSO property. Contractor site superintendent must escort Contractor employees to Engineering (Building 5) to obtain badge(s). Contractor must maintain a Badge Log with Employee Names, Badge ID Numbers, Start Date(s), Departure Date(s), ID Lost Date(s), and ID Return Date(s). Contractor must update Badge Log and furnish to the COR weekly or as directed in writing by COR. Contractor must report lost Badge(s) immediately to the COR and document on Badge Log. Contractor must return Badge(s) immediately on day of departure of employee from project to COR and document on Badge Log. Contractor must return remaining Badge(s) at project closeout to COR. Contractor must reimburse the Government a \$100.00 fee for each lost or unreturned Badge.

F. **Key Access:** Contractor site superintendent may check out a key to access mechanical and electrical rooms as project requires. Contractor site superintendent must check out and return a key at Engineering (Building 5) daily and the key must not leave VHSO property. Contractor site superintendent must notify the COR when a key is lost. Contractor must reimburse the Government a \$3,500.00 fee for each lost or unreturned key(s).

G. **Property Access Work Hours:**

1. Regular Business Hours: Work must be scheduled during regular business hours, 0600 to 1600 hours, Monday through Friday (excluding Federal holidays).
2. Outside Regular Business Hours: Work must be scheduled during 1600 to 0600 hours, Monday through Friday, Saturday and Sunday (excluding the following Federal holidays) and must not commence without prior COR written approval at no additional cost to the Government.

3. **Designated Hours:** Contractor must plan contract work activity that interferes with Medical Center (MC) operations and must not commence without prior COR written approval at no additional cost to the Government.

H. **Utilities:** Contractor must not leave unattended out-of-service any utility, fire protection, life safety system, or security system without written permission of the COR. If a utility, fire protection, life safety system or security system is not functional at the end of a work period without written permission of the COR, then the Contractor must restore the system(s) to working order prior to leaving the job site or must furnish an around-the-clock watch subject to COR written approval until the system is functional. If the Contractor fails to do so, the Contractor must reimburse the Government a fee equal to the amount of costs incurred by the Government to furnish around-the-clock watch and/or repair the system(s).

I. **Parking:** Contractor on-site parking is limited to availability of designated Contractor parking. Contractor must have prior COR written approval of on-site Contractor parking.

J. **Vehicles and Construction Equipment:** Contractors' key(s) to unattended vehicle(s) and construction equipment must be removed and vehicle(s) locked.

K. **Unloading and Loading:** Contractor must unload and load materials, including but not limited to, equipment, tools, supplies, parts, and construction debris at the loading dock, or a location approved by COR. Contractor must not leave vehicle(s) or construction equipment unattended at the loading dock. No materials, including but not limited to, equipment, tools, supplies, parts, and construction debris are permitted through the front entry.

L. **Storage and Staging:** Contractor storage and staging is limited to availability of designated on-site Contractor storage and staging. Contractor must submit a written request for storage or staging to the COR for consideration a minimum of seven (7) business days prior to the storage or staging. Contractor must have prior COR written approval of on-site Contractor storage and staging. Contractor must relocate or remove on-site storage and staging, including but not

limited to, Contractor's office trailer(s), dumpster(s), storage container(s) and construction materials a maximum of seven (7) business days after written notification by the COR without additional cost to the Government.

M. **Equipment and Tools:** Contractor must furnish construction equipment and power and hand tools, including but not limited to, ladders, scaffolds, lifts, backhoes, and forklifts to complete Contractor's work.

N. **Radios and Mobile Devices:** Contractor must use mobile devices at low volume or outside. Contractor must not carry on conversations in hallways or near any patient areas. AM/FM radios and other media producing devices must not be used on VHSO property.

O. **Noise:** Contractor must coordinate and schedule with COR noise making activities. Contractor must submit to the COR a written request for consideration and written approval a minimum of seven (7) business days prior to activity. Contractor must have COR written approval to proceed.

P. **Dust Proofing and Cleaning:** Contractor must cover furnishings and equipment with white plastic, fire retardant polyethylene, antistatic, minimum 6 mil thickness, imprinted with fire retardant labeling or clean drop cloth. Contractor must furnish HEPA vacuum cleaner(s), cleaning tools, and tacky mats at job site entrances. Contractor must not use broom(s).

Q. **Hot Work:** Contractor must perform and safeguard hot work operations in accordance with OSHA 1910 Subpart Q, NFPA 241, and NFPA 51B. Contractor must coordinate and schedule with COR Hot Work Operations. Hot work operation is defined as operations including, but not limited to, open flame, producing heat and/or sparks, burning, welding, processes such as arc welding, oxy-fuel gas welding, open-flame soldering, brazing, thermal spraying, cutting, oxygen cutting, arc cutting, chipping, grinding, heat treating, sand blasting, torch-applied roofing, chemical welding, thawing pipe, and light horizontal welding, or an operation that is capable of initiating fires or explosions. Contractor must obtain Hot Work Permit from COR prior to activity.

R. **Energized Circuit Work:** Contractor must perform, maintain, and safeguard the integrity of the VHSO electrical systems and must follow

procedures around energized equipment in accordance with NFPA 70E standards including proper PPE. Contractor must coordinate and schedule energized circuit work with COR. Contractor must submit to the COR a written request for consideration and written approval a minimum of seven (7) business days prior to activity. VHSO electrician or electrical engineer must monitor work. Contractor must use safety equipment to include but not be limited to, 12 calorie arc flash suits with hoods and 5KV gloves. No exits will be blocked. Personnel without proper PPE must be prohibited within the working area around live electrical panels with the cover removed. Contractor must have COR written approval to proceed three (3) business days prior to activity.

S. Utility interruption: Contractor must coordinate and schedule with COR. Contractor must submit to the COR a written request for consideration and written approval a minimum of seven (7) business days prior to activity. Work must be planned in advance to give as much time as possible to schedule a utility interruption. There may be times when a utility interruption request is denied because of insufficient lead-time or interference with ongoing VHSO activities and must be rescheduled at no additional cost to the Government. Contractor must have COR written approval to proceed three (3) business days prior to activity.

T. Disposal: Contractor must coordinate and schedule with COR. Contractor must have COR written approval to proceed three (3) business days prior to activity. Contractor must submit a written request to dispose of any government owned materials, equipment, or property in advance to the COR for COR written approval. Contractor must remove and properly dispose construction debris, materials, equipment, and substances from this project and the VHSO property daily into the Contractor supplied containers. Contractor must coordinate disposal container location with COR contingent upon available space and any future COR directed relocation(s) must be at no additional cost to the Government. Construction debris created from the project must not be disposed of in VHSO dumpsters or on VHSO property. Disposal of construction debris, materials, equipment, and substances from the project must be in accordance

with applicable Federal, State, and Local laws, rules, and regulations. The Contractor must ensure and furnish appropriate documentation to the CO and COR that all hazardous waste handlers, haulers, and disposal facilities are properly licensed. The Contractor must furnish shipping manifest and documentation of disposal of construction debris, materials, equipment, and substances from the project prior to final payment.

U. **Fumes:** Contractor must coordinate and schedule with COR. Contractor must submit to the COR a written request for consideration and written approval a minimum of seven (7) business days prior to activity. The Contractor must schedule fume producing work activities, including but not limited to, painting or heat produced fumes after regular business hours. Contractor must be responsible for ventilation necessary to exhaust and prevent fumes from entering adjoining areas, outside air intake ductwork, and re-entering the VHSO healthcare facilities at no additional cost to the Government. Contractor must have COR written approval to proceed three (3) business days prior to activity.

V. **Photography:** Contractor must coordinate and schedule with COR. Contractor must be escorted by VHSO personnel to take job site related photos. Contractor must not photograph any patients, personnel, visitors, and others on VHSO property.

W. **Project Meeting/Conference Minutes:**

1. Meeting minutes for all formal meetings and conferences held with the VA; including weekly construction meetings. Meeting minutes must be submitted within seven (7) calendar days of the meeting or conference. All documents in any of the electronic formats listed above.

2. Minimum meeting minutes requirements.

- a) Contractor must take minutes of all meetings held relative to this project.
- b) The progress meeting must include at a minimum, the Project Manager and the Contractor, the COR and the CO representing the Government. Others must attend when

requested by the Contracting Officer. The meeting must be scheduled the same day, time, and place each week.

- c) Project name, number, meeting host, Meeting Name.
- d) Date, Time, meeting ID, call in number, Duration, and consecutive number of total related meetings.
- e) Participant list (Name, Title, Phone number (office and Mobile), Email, Attended Meeting (yes/no Check box).
- f) Meeting purpose, Roll call, Safety, Security, Environmental, and Additional Items.
- g) Agenda items (Decisions, action items, and fixes or next steps).
- h) Next meeting date and time.
- i) Detailed attachment list.
- j) Contractor must furnish, via e-mail, complete copies of all minutes to all attendees within 72 hours of the meeting. All challenges to the minutes will be reflected in a revised version prepared by the Contractor along with the Contractor and COR shall sign/initial the minutes. In the event of any disputes or challenges that can't be resolved, the Contracting Officer shall render a final decision. Copies of updated minutes must be distributed to the all attendees within 48 hours after change notice.

III. OTHER REQUIREMENTS:

- A. Structural members must not be cut or altered, without prior CO written authorization.
- B. Contractor must make every reasonable effort to protect VHSO property from damage.
- C. The Contractor must furnish adequate protection for VHSO property before any construction activities occur. Contractor moved items must be put back by the Contractor to original locations and conditions as work is completed at no additional cost to the Government.

D. Anything remaining in place that is damaged or defaced by the Contractor must be restored by the Contractor to the pre-existing damaged or defaced condition at no additional cost to the Government.

E. The Contractor must coordinate work of different trades so that interference between mechanical, electrical, architectural, and structural work including existing services must be avoided and within limits indicated the required space for operation, repair, removal, maintenance, and testing of equipment. Utilities, including but not limited to, conduit, ducts, and pipes must be arranged to ceiling slab, walls, and columns to take up a minimum footprint of space. Conduit, ducts, pipes, and equipment must not interfere with intended use of eyebolts and other lifting devices.

F. Contractor must locate existing utilities in area of work. Contractor must furnish adequate means of support and protection to utilities that remain in place. Any property, including but not limited to, electrical, natural gas, medical gas, communication and utility lines, landscaping, walkways, roads, and curbs damaged by Contractor must be repaired or replaced at no additional cost to the Government. Government property, including but not limited to, walls, ceilings, floors, furniture, must be protected from damage at no additional cost to the Government. Areas must be cleaned after coring, sawing, and other construction activities by the Contractor at no additional cost to the Government.

G. No unauthorized Contractor work to be initiated without the prior written approval of the CO. The CO must approve any request, or proposal for changes in project scope or additional requirements, in writing prior to the Contractor proceeding with any work. Any Contractor changes without prior written approval by the CO, must be done at the Contractor's risk and at the Contractor's expense. Contractors must visit the job site and visit the facility in order to determine the nature and location of the work to be performed in general and the local conditions which can affect the work. Failure to do so must not relieve the Contractor of responsibility for estimating the difficulty or cost to perform the work. Contractor must comply with applicable Federal, State, Local laws, codes, regulations, and ordinances. Contractor must obtain permits and licenses

required by Federal, State, Local law, code, regulation, and ordinance(s) at no additional cost to the Government.

IV. RECORDS MANAGEMENT OBLIGATIONS

A. Applicability

This clause applies to all Contractors whose employees create, work with, or otherwise handle Federal records, as defined in Section B, regardless of the medium in which the record exists.

B. Definitions

“Federal record” as defined in 44 U.S.C. § 3301, includes all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them.

The term Federal record:

1. includes VHSO records.
2. does not include personal materials.
3. applies to records created, received, or maintained by Contractors pursuant to their VHSO contract.
4. may include deliverables and documentation associated with deliverables.

C. Requirements

1. Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.
2. In accordance with 36 CFR 1222.32, all data created for Government use and

delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.

3. In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.
4. VHSO and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of VHSO or destroyed except for in accordance with the provisions of the agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, Contractor must report to VHSO. The agency must report promptly to NARA in accordance with 36 CFR 1230.
5. The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the [contract vehicle]. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express

written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to VHSO control or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the [contract vehicle]. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).

6. The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and VHSO guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.
7. The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with VHSO policy.
8. The Contractor shall not create or maintain any records containing any non-public VHSO information that are not specifically tied to or authorized by the contract.
9. The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.
10. The VHSO owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which [Agency] shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.
11. Training. All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take VHSO-provided records

management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.

[Note: To the extent an agency requires contractors to complete records management training, the agency must provide the training to the contractor.]

D. Flowdown of requirements to subcontractors

1. The Contractor shall incorporate the substance of this clause, its terms and requirements including this paragraph, in all subcontracts under this [contract vehicle], and require written subcontractor acknowledgment of same.
2. Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.